



MONTHLY UPDATE

Data protection: monthly update, August – September 2026

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35 places. Every block below is carried verbatim from that place's own monthly update, where it was written, sourced and checked; nothing is written here.

ANGOLA · BENIN · BOTSWANA · BURKINA FASO · CENTRAL AFRICAN REPUBLIC · DJIBOUTI · DR CONGO · EGYPT · ERITREA · ESWATINI · ETHIOPIA · GABON · GAMBIA · GHANA · GUINEA · KENYA · LIBERIA · MALAWI · MALI · MOROCCO · MOZAMBIQUE · NAMIBIA · NIGERIA · RWANDA · SAO TOME AND PRINCIPE · SENEGAL · SEYCHELLES · SIERRA LEONE · SOUTH AFRICA · SOUTH SUDAN · SUDAN · TANZANIA · UGANDA · ZAMBIA · ZIMBABWE

The place reports do not share one window; the period above is the range they span.

Angola

The data protection law is in force and unamended, and its exemptions are wider than its penalties. [Fines run from USD 75,000 to 150,000, trebled for legal persons and cumulated across concurrent contraventions](#), but the statute substitutes a law or decree for the regulator's authorisation in two places, and puts processing under state-secrecy, state-security and judicial-secrecy rules outside the law altogether. The state can therefore authorise itself, and the categories where it most often processes are excluded at the outset.

A report published on 15 August by the South African organisation Intelwatch [found the intelligence service SINSE reaching biometric data without judicial supervision](#), and identified no rule stating when it may obtain identity, biometric or mobility data and no independent body to review such requests; the migration service confirmed at the Santa Clara border post that SINSE may request access under established protocols. The same report puts the national biometric border-control system at US\$112m, awarded in February 2025 to Dolinveste Lda with Poland's Technology for Business, reportedly by direct award rather than open tender, and adds a EUR 130m passport and biometric identity contract with Hungary's ANY Security Printing, taking the total past US\$250m without significant tender, parliamentary scrutiny or human-rights impact assessment. Against that spending it records [no biometric system operating at the border posts with the Democratic Republic of the Congo](#), crossings there regulated by a manually checked seven-day paper pass, and the one functional post reading passports against the migration database but with fingerprint and height capture discontinued on maintenance grounds. It also records that the electoral register is [derived from the civil identity database, with the voter card to be used for the last time in 2027 before the identity card becomes the sole registration credential](#) under the 2025 official-registration law, and that the register has never had a comprehensive independent technical audit. The figures and the characterisation of the awards are Intelwatch's; no procurement record is on file.

Benin

Body-worn cameras have become standard kit for traffic police in the largest city, on the [500 devices and the dedicated information system the Council of Ministers authorised on 1 March 2023](#) for the police and customs, piloted from 2024 in three cities. What the record does not carry is the part that governs the footage: [who may view it, how long it is kept and whether a citizen can obtain their own sequence remain unstated](#). A collection authorised by decree and a retention rule published nowhere is the shape this ledger already holds for the data-protection layer generally.

The data-protection authority took its position abroad rather than issuing it at home. Its president told a fintech regulators' forum in Johannesburg that [trust, cooperation between regulators and coordination with financial authorities are what secure the growth of artificial intelligence and cross-border data flows](#). It is a set of recommendations rather than an instrument, and no bilateral or regional arrangement follows from it on the record.

Botswana

The commencement instrument behind the data-protection regime is now held in full: [Statutory Instrument 86 of 2021 brought the Data Protection Act No. 32 of 2018 into operation on publication on 15 October 2021](#). It dates a regime the base had been carrying from its 2024 re-enactment, and it is the kind of document that settles when an obligation actually started rather than when it was last restated.

Burkina Faso

On 3 August the legislature [voted the personal-data protection bill and the organic law creating a merged communications and data-protection authority](#). The new law prohibits and sanctions processing without consent, indexes administrative fines to turnover excluding tax and scales them by gravity, and prohibits transferring sensitive data abroad. The merged authority takes the data-protection commission's mandate and is given its own rule-making power with artificial intelligence named specifically. Neither text is held, neither is promulgated, and no commencement, seat or leadership is stated.

The same 23 July sitting replaced the 2017 decree governing the non-profit register, fixing for the first time a retention period for that data after dissolution.

Central African Republic

The month's sharpest item is an allegation about surveillance. A critical outlet reported that [the president has turned to mobile operators to trace citizens through SIM card records](#). The account is one outlet's and the record held carries no official instrument authorising such tracing, no operator confirmation and no data-protection safeguard attached to it. It is recorded here because a claim of state access to subscriber records is the kind of thing a base should carry even before it is confirmed.

Djibouti

On 4 August 2026 the state daily *La Nation* [described the Police Nationale and road-safety officers carrying body-worn cameras routinely in central Djibouti](#), not piloting them. The protocols it reports require the device to be worn visibly and the subject to be told they are being recorded, with recording triggered manually or automatically according to the type of intervention or the threat level detected. No retention period, access rule, data controller or authorising instrument is named, and nothing on file establishes one as at 4 August 2026. The Digital Code's prior-authorisation regime, in force since 30 June 2025, reaches biometric processing, and no authorisation or published rule covering the camera fleet is held.

DR Congo

Data protection has an authority that does not exist, a code that is now being prosecuted, and a population whose service does not reach it. The prosecutor general [mobilised judicial police officers against offences committed on social media](#) — enforcement against speech running ahead of any body protecting the data the same code governs. In the east, [mobile and internet service has been off across Fizi territory, Baraka included, since 3 July, with a press-freedom call for restoration on 17 August](#). It is reported as war damage rather than an ordered restriction, and no licensing or administrative decision for occupied territory is held.

Egypt

The month's data-protection movement is an objection rather than a rule. A member of the Senate's constitutional and legislative affairs committee [objected to compulsory face-print collection by private operators for mobile line registration, arguing that identity can be verified by less intrusive means and that the 2020 personal data protection law classes biometrics as sensitive data](#). The collection itself is in operation; what the base does not hold is the instrument authorising it, the retention rule or any operator-side safeguard — which is why the objection is the first record here of a practice already running. Parliamentary pressure ran the same way on artificial intelligence, where members [called for deterrent rules to govern it](#), and neither call has yet produced a text.

The telecoms regulator [referred all four mobile operators to the Public Prosecution over lines registered in users' names without their knowledge](#), a disclosure made inside its half-year complaints report rather than as a separate enforcement notice. No charge, hearing date or penalty is on file.

Eritrea

The data-protection position was re-verified rather than changed. A legal-research pass dated 1 August 2026 [records no comprehensive data-protection law in force, no supervisory authority established and no enforcement decisions published](#). What the month adds is the date, not the finding: the absence is now a searched one rather than an unexamined one. It agrees with a regional ministerial assessment placing Eritrea's data-protection policy area at a nascent stage without legislation or regulatory oversight, and with a trade regulatory profile recording no data-protection officer, impact-assessment or retention requirements. Three independent assessments across four years say the same thing, which is what distinguishes a reported absence from an unexamined one.

Eswatini

The next day ESCCOM, as the data protection authority, [began validating draft advisory guidelines on the lawful processing of personal health data](#) at Ezulwini, with the health ministry, providers, insurers, pharmacies and medical aid schemes. They will be published as a regulatory instrument under the Data Protection Act 2022, covering collection, retention, sharing, breach notification, cloud services and patient rights. The commission disclosed that it has concluded a complaint over a practitioner's unlawful disclosure of a patient's information.

In August the same rule-making reached a second sector and produced a ranking. A week-long workshop [validated draft sector data-protection guidelines and produced a proposed whistle-blower-protection framework, with the regulator naming the financial sector as the leading source of personal-data breaches](#) — through misdirected statements and invoices, and cybersecurity incidents exposing customer records. No breach count, penalty or enforcement action is published behind the ranking, and the draft guidelines are not held.

Ethiopia

The Development Bank [adopted an information disclosure policy classifying client credit information permanently non-disclosable](#), alongside legal case files, strategy papers, security protocols and third-party contracts, where disclosure could cause substantial harm to the Bank, its stakeholders or the national interest. The Bank may also decline a request that would require it to create a record it does not already hold. No instrument number, gazette reference or appeal mechanism is stated.

Two further positions sit beside it. A public critique [set out the absence of independent data-protection safeguards over the national digital identity](#), which this ledger records as not held. And the foreign ministry [circulated a diplomatic note asking missions for staff and property records](#), with no legal basis, retention period or purpose limitation stated for the collection.

Gabon

The data protection authority described itself, which is the most the record holds about it. Its president [set out the mandate and its limits: the authority holds a regulatory power to set rules published in the official journal, personal data remains the property of the citizen while collectors hold and process it, and insult and digital communication fall outside its competence and to the media regulator — which is what it is most often asked about](#). He put dealing directly with the large social platforms as requiring a common African response rather than a national one. No budget, staffing, caseload or enforcement action for the authority is published, so its independence is asserted rather than evidenced.

Gambia

The body that carries both of the country's information statutes surfaced in the record for the first time this window, and it surfaced as a recipient of support rather than as a regulator acting. The Information Commission, responsible for the Access to Information Act 2021 and the Personal Data Protection and Privacy Act 2025, is [receiving UNFPA-funded support under the Peacebuilding Fund's Public Accountability Project to build a communication strategy raising public awareness of both statutes](#). No budget, staffing, caseload or enforcement record for the commission is held, and awareness-raising support is not evidence of capacity to enforce.

Ghana

The data-protection regulator's own enforcement record did not change; the action framed as a data-privacy violation in the month was taken by the central bank. But the cyber security authority produced the first enforcement of its kind the base holds, and its subject is another arm of the state. It [fined the Registrar of Companies GH¢240,000 for engaging an unlicensed cybersecurity provider and fined that provider GH¢120,000 for operating without a licence](#), after the registrar ignored a June 2026 directive to engage a licensed tier-one critical-information-infrastructure provider under the Cybersecurity Act 2020. The registrar has since contested it, [saying the procurement of its network and security operations centre was substantially complete before the tier-one directive was issued](#); no adjudication of that timeline is held.

The regulator's own first-half numbers reached the base on 7 September, and they measure activity rather than enforcement: [a 51.5% rise in regulatory activity and a 98.4% rise in newly registered data controllers over the first half of 2026, with a public campaign put at an estimated 25 million people reached](#). The controller figure is a growth rate published without the base it grew from, and no fine or prosecution has yet been.

Guinea

Enforcement arrived before the institutions did. A first-instance court [convicted a defendant under the cybersecurity and data-protection law on 19 August, imposing six months' imprisonment of which five were suspended, a 40 million GNF fine and deletion of the defendant's social-media account](#) – the first conviction under that law on file, and an account deletion ordered by a court rather than by a platform. Separately the central bank [warned against unauthorised crypto-asset and online trading platforms](#), naming no platform and stating no licensing route.

Kenya

On 4 August the data-protection regulator published [draft guidance on offshore AI processing](#) requiring a lawful transfer basis, a documented adequacy assessment and a written processing agreement before personal data leaves Kenya; the note itself is not held after two retrievals returned HTTP 404.

The gambling regulator [confirmed on 3 August](#) that it is investigating three licensed operators on a complaint dated 19 May 2026, with police requesting its entire record on the licensees back to 2018.

The regulator also pressed an older instrument into the campaign. The data commissioner [said guidance now binds every organisation touching voter data, from the electoral commission down to civil-society registration groups, with the commission's own processing anchored in statutory mandate rather than consent and parties' obligations turning on how they obtained the data](#), as unsolicited political messaging spreads ahead of the 2027 election. The guidance itself is not new: the Office [issued its Guidance Notes for Electoral Purposes on 29 February 2024, covering the voter register, political parties' member registers and campaign use of personal data under the Data Protection Act 2019](#). What changed in August is the statement of it, not the rule. No enforcement action under the guidance is on record.

A gap the regulator does not cover was named at the internet governance forum, where a United Nations agency [said an Agency Coordination Mechanism is being fast-tracked against AI-manipulated images and the doxing of female candidates ahead of the 2027 elections](#); no terms of reference or date is published.

Liberia

The data-protection statute exists. The Personal Information Act [was signed into force on 19 August alongside the cybercrime law](#). What follows a signature is the part the base cannot yet see: no commencement date, supervisory authority, appointment or implementing regulation is held.

Malawi

A gap the base has carried since April closed this month, though not by the route that would have settled it. The United States embassy [said Malawian biological specimens will be shared with Washington only during public health emergencies and outbreaks and that no personally identifiable information passes under the agreements](#), dating the specimen-sharing agreement to 11 February 2026 inside a five-year health package valued at US\$936 million. Malawi must supply requested specimens within seven days and gets priority access to any resulting diagnostics, vaccines or therapeutics only after meeting its own domestic needs - a clause Malawian health advocates call a major limitation. The instrument's own text remains withheld and in litigation, so what is now on the record is the shape of the deal and both governments' account of it, not its terms.

Mali

On 3 August the [data-protection authority opened its second 2026 session](#) with more than 1,000 files before it over ten days — authorisations, declarations, video-surveillance oversight, formal notices and direct sanction procedures — its president grounding the sanctions in Loi n2013-015 as amended.

Morocco

The data-protection authority moved first on the election. It [set out in a communiqué of 28 August the rules binding political parties, candidates and artificial-intelligence-generated content during the campaign](#), having already [set out the requirements for processing personal data in the legislative elections](#). Naming synthetic content in an election instrument is the notable part. The record held carries no enforcement action under it and no complaint mechanism a voter could use.

Mozambique

The data-protection law is closer to Parliament than it has been. Authorities [are preparing to submit the draft bill](#). Preparing to submit is not tabling: no bill number, date or text is held, and the country remains without a data-protection law in force while its identity, humanitarian and payment registers all expand.

Namibia

Namibia said no to a data deal. The government [rejected a United States health data and specimen-sharing proposal, citing sovereignty](#), while the two sides [raced to finalise HIV funding talks with the data-sharing question still open](#). A refusal of this kind is rare enough on this base to be worth recording as its own position. What the record held does not carry is the text of what was proposed, or what the funding now depends on.

Nigeria

On 28–29 July the Federal High Court [upheld the data-protection commission's power](#) to designate and register controllers and processors of major importance, dismissing a suit that had sought to place PoS agents outside the class; the commission immediately directed every unregistered entity to register. The judgment is not held and its delivery date is unestablished. The commission then used the power: on 13 August it [opened a forensic investigation into a federal university, a bank and a technology vendor over the alleged use of students' personal data to open bank accounts without consent](#). No finding or penalty has followed.

Its other August move was institutional rather than adversarial: the commission and the securities regulator [agreed to deepen collaboration on data-protection compliance in the capital market](#), the commission's head visiting the regulator in Abuja and being invited to its compliance summit. No memorandum, joint supervisory arrangement, compliance standard or enforcement commitment is stated.

A civil-society platform began watching the same election from the data side, [tracking parties' websites and social media for privacy violations and access restrictions, piloted at the 15 August state governorship poll](#). No findings from the pilot are published.

Child protection online entered the record as a consultation rather than a rule. Nigeria is [consulting on age limits, identity verification and platform liability, one of several African states moving from a minimum age for opening an account towards design duties on the platforms themselves](#), against an African Union child online safety policy of

2024 asking states to require protection by design and by default, risk assessments, researcher access to platform data and independent oversight. No draft instrument, closing date or responsible body is named, and the constraint reported across the region is enforcement rather than law.

An underground market trading national identity and bank verification numbers [shut down after an investigative report named its operator](#), who remains a registered licensee of the data-protection commission. The closure and the licence surviving it are both the commission's own disposition; no enforcement notice against the operator is on file.

The commission opened a second framework alongside its enforcement work: validation of a [data privacy framework for electronic commerce, at an Abuja workshop run with the German development agency and following a private-sector session in Lagos](#). No draft text, scope, commencement date or enforcement route is published, so what exists is a consultation rather than an instrument.

Rwanda

Rwanda is [preparing a restriction on social media use by under-16s](#), one of several African measures moving from a minimum age for opening an account towards design duties on the platforms themselves — Gabon's February 2026 ordinance fixing digital majority at 16 and additionally obliging platforms to limit publication and interaction functions, disable contacts from unidentified users by default and provide age verification. The African Union's 2024 child online safety policy already asks states to require protection by design and by default, risk assessments, personal-data safeguards, researcher access to platform data and independent oversight. No draft text, sponsoring body or timetable is named here, and the constraint reported across the region is enforcement rather than law.

Sao Tome and Principe

A further agreement between the two jurisdictions on [exchanging information to combat money laundering is to be signed](#). It is the second instrument with the same counterpart and the base holds no signature date or text for it.

Senegal

The data protection commission published its quarterly opinion for April to June 2026: [195 files handled, 154 declarations and 41 authorisation requests, producing 153 declaration receipts and 39 authorisations](#), with one processing operation rejected, two data controllers heard, eight complaints received and one report. It is the first published measure of the commission's own throughput this ledger holds. It counts registrations rather than enforcement, and the commission still operates under a law unamended since 2008.

Seychelles

The information commission's visible work is inducting the officers other public bodies must appoint. It [held the second of its two annual induction sessions for newly appointed information officers, led by its chief executive and a senior information analyst](#). The enforcement half of its mandate still shows no case: it has been the designated data-protection authority since December 2023, an enforcement-capacity gap was documented in November 2025, and no audit, investigation or fine against any controller has been reported. No count of officers inducted or bodies covered is published.

Sierra Leone

Data-protection work in the window was training rather than enforcement, and it went to the government's own builders. The communications ministry [took the science and technology directorate's technical team through artificial intelligence and data protection by design](#), and through its obligations under the cybersecurity statute, the civil registration act and the forthcoming data protection law. Training a state team on a law not yet passed is the sequence this section keeps recording: the Data Protection and Right to Access Information Bill is still in development, so the obligations taught are prospective.

South Africa

The data-protection statute has been enforceable since 2021 and operates as an adequacy model rather than hard localisation: [cross-border transfers are permitted where equivalent protection, consent or contractual necessity applies, with the controller accountable](#). The maximum fine is R10m against a measured average breach cost of R44.1m — the penalty is a fraction of the harm it is meant to deter.

The supervisor said plainly what it cannot do. At a webinar on 18 August the regulator [said it has no capability to test external systems for privacy compliance before launch](#), and is working with the justice department to amend the Act to cover artificial intelligence and privacy by design, while the rights commission reframed misuse of personal information as a constitutional harm bearing on dignity, equality and access to services rather than a cybersecurity one. A peer-reviewed review published four days earlier [records South Africa among three of four countries studied that have not signed the continental data convention, and finds all four health-data governance frameworks fragmented](#).

South Sudan

There is still no data protection authority, and the communications regulator carries the function in its absence. Its own overview describes a statutory mandate under the National Communication Act 2012 that [includes information protection and data privacy](#) alongside telecommunications, broadcasting and postal regulation. A sector regulator holding a privacy function inside a telecoms mandate is what the country has instead of an authority, and the Bill that would create one has not left drafting.

Sudan

The Council of Ministers reviewed a draft Data and Artificial Intelligence Law on 6 August 2026, paired with the cybersecurity and digital-transformation drafts, and sent all three back for further study; the enactment route is a joint sitting of the Sovereignty Council and Council of Ministers rather than an elected chamber, and no text has been published.

Tanzania

The data protection commission and the open university [opened a certification programme for data protection officers on 14 July](#), the university training and assessing and the commission certifying, aimed at government, finance, telecommunications, healthcare, education and technology. It answers the statutory officer duty; no intake number, fee or cohort date was published.

A separate rule pulls in the other direction. Businesses selling on social media must now [display tax credentials — a taxpayer identification number, tax clearance certificate or certificate of registration — on their public pages](#), and digital creators and online traders have objected that publishing those credentials exposes them to impersonation and fraud (12 August). The objections are those of named creators and traders reported by the paper rather than a regulator finding; no data-protection assessment or redress route is published.

The regulator set a date for the enforcement it announced in April. On-site inspections [begin on 31 August, after preliminary assessment found limited understanding of legal obligations, inaccurate registration information, difficulty implementing data-subject rights and personal data leaving the country outside the statutory procedure](#).

Uganda

The data protection office's letter of 17 July confirmed compliance with the five orders in its [decision of 20 February 2026](#), which had required a data-protection impact assessment, an adequacy assessment, a legitimate-interests assessment and a Uganda-specific privacy notice. The decision imposed no fine and refused the complainant's prayers for cessation of intra-group sharing.

On 14 August the ICT ministry launched a [three-year child online-safety campaign in Kampala with the communications regulator and a private partner](#). No budget, reach target or evaluation arrangement is published for it, which is the same gap that closed the previous awareness campaign without a measured result.

The sharpest test of the protection regime in the window came from another arm of the state. The revenue authority has [issued more than 1,000 compliance notices since June 2026, and wrote to a commercial bank on 27 July seeking five years of customer bank statements, the directors' personal identity information and the bank-client correspondence](#), under the Tax Procedures Code Act and against a ten-month collection shortfall of Ush1.5 trillion. Nothing from the data protection office is on record about it.

Zambia

The data-protection regulator exists and travels; nothing in the base shows it acting. It joined a multi-sectoral delegation to the continental identity conference, and on 31 July [nine civil society organisations asked it to examine the source of the contact list behind SMS messages sent to social cash transfer beneficiaries](#) before the 13 August election. No response from the Office is on the record. No registration count, enforcement decision, fine, breach notification, guidance note or annual report is held for it at any date. The Data Protection Act 2021 remains in force and was [named by the information ministry on 18 July as one of three instruments regulating online communications, cybersecurity and personal data](#); the reported Cabinet intention to repeal it has produced nothing on the record in sixteen months.

What is being built for it is a system rather than a case. The World Bank-financed acceleration project [opened tender on 10 August, closing 21 August, for a digital data-protection compliance management system to serve the Commission](#), to integrate with the government service bus and payment gateway and to meet ISO/IEC 27001, ISO/IEC 27701 and WCAG 2.1 AA, alongside a [parallel tender to review the national data-protection guidelines and compliance frameworks](#). Tenders rather than awards, and neither states a value, a delivery date, or the caseload the system would manage.

Zimbabwe

Certification of every data protection officer is required under the same 26 July notice, at US\$1,250 for a Zimbabwean ([notice account](#)).

August brought the objections. Healthcare providers and the medical association [objected to the data-controller licensing regime as applied to them](#) — roughly US\$300 a year plus a mandatory data protection officer — calling it [costly and duplicative of existing health-professions regulation](#) ahead of the September inspections, and a published analysis [argued the regulator's threshold-based licensing model is disproportionately burdensome for small entities](#) against the risk-based approach of the European regulation it is compared with. The statutory instrument's fee schedule is not held, and no licence count, exemption or regulator response to the objections is on record.

Two further protection questions surfaced without a regulator attached. The anti-corruption commission is [investigating cyber-enabled fraud across three state digital systems](#): suspected manipulation of the driver-licensing platform, a US\$150m diversion of state mobile-operator airtime with a criminal case pending and asset forfeiture completed, and a scheme crediting more than ZIG55m and US\$260,000 of fictitious prepayments on the revenue authority's customs platform. And the National Child Online Protection Policy 2026-2030, [approved by Cabinet in June, has no reporting route, responder training or funded rollout on record](#) — which is what a published analysis argues will decide whether it protects anyone.

The government put the national data volume at [179 petabytes against 114 previously](#) and cited the near-doubling in telling technology firms that corporate responsibility is not negotiable, resting the point on the National Child Online Protection Policy approved by Cabinet in June. Separately, civil-society organisations say [data-protection certification fees are high enough to exclude rural communities and young women](#) from compliance; no fee schedule, exemption or regulator response is on file. The base had been carrying that child-protection policy as three separate rows, minted from three separate reports; they are now resolved to one.

The approval date itself is now settled from the primary record: the Office of the President and Cabinet's own briefing dates approval to the [Seventeenth Cabinet Meeting of 2 June 2026, and sets out nine strategic focus areas from institutional capacity and legal framework through technical control and corporate responsibility to monitoring and learning, aligned to the Constitution and the Children's Act, with legislation carrying enforceable sanctions to follow](#). The base had been carrying 10 July 2026, which is the policy's Bulawayo launch.

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